

26STCP02641 26STCP02641

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-23

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Case Number: 26STCP02641 Hearing Date: September 23, 2026 Dept: 25

HEARING DATE: Wed., September 23, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Empire

Entourage, LLC v. We Design, LLC

PET. FILED: 07-14-26

CASE NUMBER: 26STCP02641

NOTICE: OK

PROCEEDINGS: VERIFIED

PETITION FOR RELEASE OF PROPERTY FROM MECHANICS LIEN

MOVING PARTY: Petitioner

Empire Entourage, LLC

RESP. PARTY: None

PETITION TO RELEASE MECHANICS LIEN

(Civ. Code § 8460, et seq.)

TENTATIVE RULING:

The Court GRANTS Empire Entourage, LLC's petition to release the mechanics lien. Empire is awarded \$4,500.00 in attorney fees.

Empire is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC,
rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a)
OK

[X] At least 15 Days Lapsed (Civ. Code §
8486(b)) OK

[X] Correct Manner of Service (Civ. Code
§ 8486(b)) OK

OPPOSITION: None
filed as of September 21, 2026 [] Late [X]
None

REPLY: None
filed as of September 21, 2026 [] Late [X]
None

ANALYSIS:

Empire

Entourage, LLC petitions the Court to release property located at 235 Orchid Court, Montebello, California 90640 from a mechanics lien recorded in December 2024 by We Design, LLC.

After a mechanics lien has been recorded, “[t]he owner of property or the owner of any interest in property subject to a claim of lien may petition the court for an order to release the property from the claim of lien if the claimant has not commenced an action to enforce the lien within the time provided in Section 8460.” (Civ. Code, § 8480, subd. (a).) A claimant must commence an action to enforce a lien within 90 days of recording it, otherwise the claim of the lien expires and is unenforceable. (Civ. Code, §

8460, subd. (a).)

The Court previously continued this

hearing to allow Empire to file proof of service of its petition, and Empire has since filed proof of personal service.

Empire has now properly complied with the service requirements, petition

allegation requirements, and demand requirements in filing this petition. (Civ. Code, §§ 8108, 8482, 8484, 8486.) We Design did not file an opposition

indicating otherwise.

Accordingly, the Court GRANTS Empire's

petition to release the mechanics lien.

Empire also requests attorney fees

pursuant to Civil Code section 8488, subdivision (c), which provides for reasonable attorney fees to the prevailing party on a petition to release a mechanics lien. Given the Court's ruling

to grant the petition, Empire is the prevailing party and is entitled to reasonable attorney fees. Empire requests

\$6,500.00 in attorney fees, reflecting 13 hours of its counsel's work at the rate of \$500.00 per hour for obtaining factual background and documents, reviewing and analyzing the documents, conducting research, preparing and revising the petition, preparing the petition, preparing and overseeing service of the documents, reviewing an opposition, preparing a reply, preparing and attending this hearing, and preparing and recording the documentation needed to release the mechanics lien.

Empire doesn't break down its attorney's

time in performing each of those tasks, some of which are not fairly filled at attorney rates. Moreover, no opposition

was filed and so there was no reason for Empire to review one—or to prepare a reply. Given those two facts, the Court deducts four hours of attorney time.

Accordingly, the Court awards attorney

fees in the reduced amount of \$4,500.00, reflecting nine hours of counsel's work at the rate of \$500.00 per hour.

Empire is to give notice and to

provide a proposed order within 10 days of this ruling.